

24STCV23252 24STCV23252

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-06-29

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Case Number: 24STCV23252 Hearing Date: June 29, 2026 Dept: 617

Dept.

617

Date:

6-29-26

Case

#: 24STCV23252

Trial

Date: None Set

DEMURRER

MOVING

PARTY: Defendant, Winsfargo Transport, Inc.

RESPONDING

PARTY: Plaintiff, Creditors Adjustment Bureau, Inc.

RELIEF

REQUESTED

Demurrer

to First Amended Complaint

SUMMARY

OF ACTION

Plaintiff

Creditors Adjustment Bureau, Inc.'s assignor entered into a written agreement with Defendant Winsfargo Transport, Inc. for the provision of a workers' compensation policy to Defendant. Plaintiff alleges that after Defendant failed to make required premium payments, it provided Plaintiff a promissory note whereby it agreed to pay Plaintiff the sum of \$97,285.42, to be paid in installments. Plaintiff claims that Defendant ceased making payments leaving an outstanding balance of \$42,285.42. On July 18, 2025, Plaintiff filed a First Amended Complaint against Defendant for breach of the promissory note.

RULING: Overruled.

Defendant demurs to Plaintiff's

First Amended Complaint on grounds of uncertainty and failure to state a cause of action. Defendant argues that it is unclear what contract Plaintiff is suing upon and Plaintiff does not state how the promissory note was breached. Plaintiff opposes the demurrer, maintaining that the complaint sufficiently states a claim for breach of the promissory note. Defendant's demurrer is overruled.

A

demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading "by raising questions of law." (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (*Picton v. Anderson Union High School Dist.* (1996) 50 Cal.App.4th 726, 733.) "If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer." (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998)

19 Cal.4th 26, 38.)

“A

demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly’s of Cal., Inc. (1993) 14 Cal.App.4th 612, 616; Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2 [“[U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend”].).)

Defendant’s

arguments are without merit. The elements of a breach of contract cause of action are: “(1) existence of the contract; (2) plaintiff’s performance or excuse for nonperformance; (3) defendant’s breach; and (4) damages to plaintiff as a result of the breach.” (CDF Firefighters v. Maldonado (2008) 158 Cal.App.4th 1226, 1239.) The First Amended Complaint clearly indicates that Plaintiff is suing on the promissory note and that Defendant breached the note by ceasing to make payments. [FAC ¶¶ 11-18.] There is no ambiguity as to Plaintiff’s claim. Defendant’s demurrer is therefore overruled.

Defendant

to answer the operative complaint within 10 days.

Defendant

to give notice.